

Filing Fees Are Not Refundable



☐ CIRCUIT COURT ☒ DISTRICT COURT OF MARYLAND FOR Prince George's County-Upper Marlboro (DC)
City/County

Located at _____ Telephone _____
Court Address

Case No. 0D00123456789012

Tracking # _____

STATE OF MARYLAND

vs. Maria-Alejandra O'Shaughnessy-Whitfield 12/31/1968
Defendant DOB

PETITION FOR EXPUNGEMENT OF RECORDS (NON-MARIJUANA/CANNABIS RELATED OFFENSES) (GUILTY DISPOSITION)

(In this petition, references are to the Annotated Code of Maryland, and references to "crime," and to "criminal action," refer to any criminal offense, other than a violation of the vehicle or traffic laws, ordinances, or regulations, that does not carry a possible sentence of imprisonment.)

1. (Check one of the following boxes) On or about 01/02/2009, I was ☒ arrested, ☐ served with a summons, ☐ or served with a citation by an officer of the Prince George's County Police Department, District III (Palmer Park) Law Enforcement Agency at Upper Marlboro, Maryland, as a result of the following incident an allegation of remaining on the premises of a closed business after being asked to leave. No injury, no weapon and no property loss was alleged.

2. I was charged with the offense of Trespass on posted property, Md. Code, Crim. Law sec. 6-402, a misdemeanor.

3. On or about 07/19/2010, I was **convicted** (found guilty) of (check all that apply, making sure that each statement is true and correct):

- ☐ the charge/offense, but the conduct on which the charge/offense is based is no longer a crime.
- ☐ the conviction was for sodomy or unnatural or perverted sexual practices, and the conviction is not precluded from being expunged for any of the reasons listed in § 10-105(a-1) of the Criminal Procedure Article.
- ☐ a crime specified in Criminal Procedure Article, § 10-105(a)(9). Three (3) years have passed since the later of the conviction or completion of the sentence(s). I am not now a defendant in any pending criminal action.
- ☒ one criminal act, which is not a crime of violence as defined in Criminal Law Article, § 14-101(a), and on or about 09/30/2019, I was granted a full and unconditional pardon by the Governor, with respect to that conviction. Not more than 10 years have passed since the Governor signed the pardon. I am not now a defendant in any pending criminal action.
- ☐ a misdemeanor crime specified in Criminal Procedure Article, § 10-110. Five (5) years have passed since the completion of the sentence(s) imposed for all convictions for which expungement is requested. During the applicable waiting period, I have not been convicted of a crime not now eligible for expungement. I am not now a defendant in any pending criminal action.
- ☐ a felony crime specified in Criminal Procedure Article, § 10-110, a crime specified in Criminal Law Article § 3-203, or common law battery. Seven (7) years have passed since the completion of the sentence(s) imposed for all convictions for which expungement is requested. During the applicable waiting period, I have not been convicted of a crime not now eligible for expungement. I am not now a defendant in any pending criminal action.
- ☐ first or second degree burglary or felony theft. Ten years have passed since the completion of the sentence(s) imposed for all convictions for which expungement is requested. During the applicable waiting period, I have not been convicted of a crime not now eligible for expungement. I am not now a defendant in any pending criminal action.
- ☐ a domestically related crime under Criminal Procedure Article, § 6-233. Fifteen years have passed since the completion of the sentence(s) imposed for all convictions for which expungement is requested. During the applicable waiting period, I have not been convicted of a crime not now eligible for expungement. I am not now a defendant in any pending criminal action.
4. ☐ The case began in one court and was transferred to another court other than juvenile court. (Note: This petition must be filed in the court to which the case was transferred.)
5. ☐ The case was appealed to a court exercising appellate jurisdiction. (Note: This petition must be filed in the appellate court.)

I request the court to enter an Order for Expungement of all police and court records pertaining to the above conviction(s). I solemnly affirm under the penalties of perjury that the contents of this petition are true to the best of my knowledge, information, and belief, and that the charge to which this petition relates is not part of a unit the expungement of which is precluded under Criminal Procedure Article, § 10-107.

Signature of Attorney _____ Attorney Number _____ Date _____

Printed Name _____

Address _____

City, State, Zip _____ Telephone _____

E-mail _____ Fax _____

Signature of Defendant _____ Date _____

Maria-Alejandra O'Shaughnessy-Whitfield

Printed Name _____

1188 Upper Coastal Crossing Road, Apartment 14B

Address _____

Upper Marlboro, MD 20772-4417 301-555-0199 ext. 4417

City, State, Zip _____ Telephone _____

maria.alejandra.oshaughnessy.whitfield@example.org

E-mail _____ Fax _____

Notice to Victim(s): You have the right to offer objections or additional information relevant to the petition to expunge conviction records under the Criminal Procedure Article, § 10-110 in all proposed actions. Submit your information in writing to the court listed above. The court may take action as soon as 30 days after the petition is served.

This form contains Restricted Information.



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Case No. 0D00123456789012

IN THE MATTER OF: State of Maryland vs. Maria-Alejandra O'Shaughnessy-Whitfield
Petitioner/Plaintiff Respondent/Defendant

**REQUEST FOR WAIVER OF COSTS
(Md. Rule 1-325)**

Unless you are filing into a restricted case type (Adoption, Emergency Evaluation, Extreme Risk Protective Order (ERPO), Guardianship, Juvenile, Gender Declaration), you must file a Notice Regarding Restricted Information Pursuant to Rule 20-201.1 (form MDJ-008) with this submission.

I, Maria-Alejandra O'Shaughnessy-Whitfield, wish to file a complaint, petition, or other documents
Name of party
which I have completed and attached. I am unable to prepay the prepaid costs in this matter because of poverty.

Affidavit of Income

I respectfully submit that:

1. There are _____ family members living in my household, including myself.
Number
(Do not include renters or temporary guests).
2. The total gross household income (before taxes) is \$ _____
(total income earned by all persons in the household) per ☐ WEEK / ☐ MONTH / ☐ YEAR.
3. The gross household income (before taxes) is from the following sources
(list amounts before taxes) per ☐ WEEK / ☐ MONTH / ☐ YEAR:
 - ☐ Wages..... \$ _____
 - ☐ Commissions/Bonuses \$ _____
 - ☐ Social Security/SSI \$ _____
 - ☐ Retirement Income..... \$ _____
 - ☐ Unemployment Insurance \$ _____
 - ☐ Temporary Cash Assistance..... \$ _____
 - ☐ Alimony/Spousal Support..... \$ _____
 - ☐ Rent received from tenants \$ _____
 - ☐ Any Other Income (Do not include food stamps/SNAP) \$ _____
4. I own the following property.
(Do not list your home, one vehicle, and/or personal items in your home):
 - ☐ NONE
 - ☐ Real estate other than principal home..... Value: \$ _____
 - ☐ Other vehicles including boats Value: \$ _____
 - ☐ Bank accounts Balance: \$ _____
 - ☐ Stocks or other securities Value: \$ _____
 - ☐ Other property (describe): _____ Value: \$ _____

5. I owe the following debts:

- ☐ NONE
- ☐ Credit Card: _____ Amount Owed: \$ _____ Monthly Payment: \$ _____
- ☐ Car Loan: _____ Amount Owed: \$ _____ Monthly Payment: \$ _____
- ☐ Other Debt: _____ Amount Owed: \$ _____ Monthly Payment: \$ _____

6. Other information to demonstrate my inability to prepay the required costs:

For these reasons:

- ☒ I request a waiver of the prepaid costs;
- ☐ I do not anticipate a material change in the information provided in this request and request a final waiver of open costs at the conclusion of the action.

I understand that I may have to pay these costs at the end of the case unless the court grants a final waiver of open costs. If I haven't asked for a waiver of open costs in this request form I may request the waiver at the conclusion of the action in a separate form.

I solemnly affirm under the penalties of perjury that the contents of this document are true to the best of my knowledge, information, and belief.

Party Signature	301-555-0199 ext. 4417
Maria-Alejandra O'Shaughnessy-Whitfield	Telephone / Fax
Party Name	maria.alejandra.oshaughnessy.whitfield@example.org
1188 Upper Coastal Crossing Road, Apartment 14B	E-mail
Address	Date
Upper Marlboro, MD 20772-4417	
City, State, Zip	

Attorney Certification (To be completed by your lawyer, if you are represented).

I, _____, certify that to the best of my knowledge, information, and belief, there is a good ground for this claim, application, or request for process, and it is not interposed for any improper purpose or delay.

On behalf of: _____
Name of party

Attorney Signature	Attorney Number	Telephone / Fax
Attorney Name		E-mail
Address		Date
City, State, Zip		



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Located at _____ Telephone _____
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Case No. 0D00123456789012

IN THE MATTER OF: State of Maryland vs. Maria-Alejandra O'Shaughnessy-Whitfield
Petitioner/Plaintiff Respondent/Defendant

ORDER REGARDING REQUEST FOR WAIVER OF PREPAID COSTS

Upon consideration of the Request for Waiver of Prepaid Costs submitted by
_____, and any further documentation as required or authorized by
Name of party
Rule 1-325 or other applicable law,

THE COURT FINDS THAT:

The party named above:

- ☐ Meets the financial eligibility guidelines of the Maryland Legal Services Corporation.
- ☐ Does NOT meet the financial eligibility guidelines.

The party named above:

- ☐ Is unable by reason of poverty to pay the prepaid costs.
- ☐ Is NOT unable by reason of poverty to pay the prepaid costs.

The claim, appeal, application or request for process:

- ☐ Does NOT appear, on its face, to be frivolous.
- ☐ Does appear, on its face, to be frivolous.
- ☐ Other findings: _____

THE COURT ORDERS that the waiver is:

- ☐ GRANTED
- ☐ GRANTED in part and the plaintiff/petitioner shall prepay the following portion of the filing fee:
\$ _____ by _____ Date
- ☐ DENIED. You have 10 days from the date of this order to pay the costs. If the unwaived costs are not paid in full within 10 days, the pleading or papers filed will be considered withdrawn.

Date Judge ID Number